

24LBCV00078 24LBCV00078

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-30

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Case Number: 24LBCV00078 Hearing Date: July 30, 2026 Dept: S27

BACKGROUND

Plaintiff, Daniel

Diamantides -Abel filed this action against Defendants, City of Long Beach, County of Los Angeles, and State of California for damages arising out of a fall that occurred when Plaintiff was riding in the bike lane and went over a damaged road, causing him to fly and hit his face on the concrete.

Plaintiff filed

the complaint on 1/16/24. Plaintiff dismissed the County on 2/28/24. Plaintiff dismissed the State on 3/22/24.

On 10/01/24, the

City filed a Notice of Permanent Channeling Injunction and Stay of Tort Litigation. The City indicated the lawsuit against it was barred by Bird Global Inc. and its related entities' filing of bankruptcy proceedings; the City indicated the lawsuit was a barred claim raised by a barred person against one of the insurance settlement released parties per the confirmation order, which includes all municipalities that are being sued for damages arising out of the use, etc., of the debtors' bird scooters.

On 5/14/25, the

Court held a status conference re: bankruptcy. The Court, finding no party to this action is a party to any bankruptcy proceeding, lifted the stay.

On May 5, 2026,

the court granted the motion of Plaintiff's counsel be relieved. The court indicated it would dismiss the entire case if Plaintiff either failed to retain

new counsel, or failed to appear for the next hearing (e.g. Case Management Conference continued from June 12, 2026 to July 30, 2026).

DISCUSSION

Applicable Law

“An action may be dismissed in any of the following instances: (1)

With or without prejudice, upon written request of the plaintiff to the clerk, filed with papers in the case, or by oral or written request to the court at any time before the actual commencement of trial, upon payment of the costs, if any. (Code Civ. Proc., § 581, subd. (b)(1).)

Analysis

City of Long Beach

established its inclusion in the Chapter 11 Bankruptcy Court Second Amended Joint Chapter 11 Plaintiff of Liquidation. The plan specifically includes all municipalities where Bird scooter products were provided to riders/users. The Bankruptcy Court Liquidation Plan creates a system whereby any claims arising from use of a Bird scooter against a municipality will require submission of a claim to an administrator (e.g. the “Channeling Injunction.”) Plaintiff admitted to utilizing a Bird scooter at the time of the incident. [Declaration of Michael Swift.]

The unchallenged

motion relies on a finding that all claims involving Bird scooters renders the subject action moot, due to said “channeling injunction,” without actually addressing the substantive underlying complaint for premises liability and negligence based on that portion of the damaged road at the time. In fact, the Bird scooter manufacturing company has never been a party to this action.

Regardless, at the

time of the May 5, 2026, order allowing counsel to be relieved as Plaintiff's attorney, the court instructed Plaintiff to appear and/or find new counsel. Given the lack of any opposition by Plaintiff the court finds in its discretion that Plaintiff is not prosecuting this matter.

CONCLUSION

The unopposed
motion for dismiss is GRANTED due to the failure of Plaintiff to continue
prosecuting the action.

The entire action is dismissed.

Moving party to give
notice.